

1.2 Introduction to the export procedure

The export procedure concerns the exit of goods from the customs territory of the Union. From a Revenue perspective, this entails:

- (a) Enforcing export restrictions and prohibitions and ensuring that export licensing requirements are met.
- (b) Ensuring that EU Regulations for export relief schemes are correctly implemented.
- (c) Preventing the unauthorised return of duty-free or VAT zero-rated goods to the home market.
- (d) Ensuring that requirements for safety and security purposes have been adhered to.
- (e) Collecting export statistics for the Central Statistics Office.

Union goods destined to leave the customs territory of the Union must be placed under an export procedure. As a consequence of the export procedure, goods change their status to non-Union goods. There are certain exceptions to this, which will be explained later in this manual.

Since upgrading the national export system, Union legislation states that all forms of customs declaration for export must be lodged electronically, where required to do so (Article 6 UCC refers) and must contain the particulars laid down for such declaration in the [revised Annex B](#) of the UCC DA and the EU Customs Data Model ([EUCDM](#)). The respective texts for Annex B, and the associated Explanatory Notes are available in the [Annexes to the UCC DA](#)

1.3 Law

EU rules governing customs procedures relating to exportation are contained in

- Articles 5, 6, 158-165, 170-174, 263-277 of Regulation 952/2013 ([The Union Customs Code \(UCC\)](#))
- Articles 1, 2, 134, 137, 140, 141, 148, 244 to 249 of Commission Delegated Regulation (EU) 2015/2446 ([The Delegated Act and associated Annexes \(DA\)](#))
- Articles 1, 2, 216 to 218, 219, 326 to 344 of Commission Implementing Regulation (EU) 2015/2447 ([The Implementing Act and associated Annexes \(IA\)](#)), and

Articles 158 and 269 of the Union Customs Code (UCC) provide that an export declaration is required for goods exported to a non-Union country. By virtue of Article 6 of [Council Directive 2006/112/EC](#) and Article 134 of the Delegated Act (DA), an export declaration is also required in cases where goods are bound for any of the special fiscal territories of the Union which are part of its customs territory but are not part of its fiscal territory. These territories include the Aland Islands (Finland), the Canary Islands (Spain), the Overseas Departments of the French Republic (French Guiana, Guadeloupe, Martinique, Mayotte, Saint Martin and Reunion) the Italian waters of Lake Lugano, Campione d'Italia, and Mount Athos (Greece).

An export declaration is also necessary when exporting Common Agricultural Policy (CAP) goods to an entitled destination in accordance with the provisions of Article 33 of [Commission Regulation \(EEC\) No. 612/09](#). Article 33(1) states that the following shall be treated as exports from the customs territory of the Union: